

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 01/30/2026

ALL APPEARANCES WILL BE BY ZOOM

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).) CourtCall will **NOT** be used by D32. Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

NOTE: In order to minimize the risk of miscommunication, Dept. 32 prefers and encourages email notification to the department of the request to argue and specification of issues to be argued.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1>

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C23-02605
CASE NAME: TALWINDER KAHLON VS. RICHARD FONG, JR.
HEARING IN RE: MOTION FOR HEARING ON MAIN ISSUE OF THE COMPLAINT
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff Talwinder Singh Kahlon's Motion for Hearing on Main Issue of the Complaint.

Plaintiff's Motion is **denied** as outlined below.

Procedural Background

Plaintiff filed his complaint on October 20, 2023. Defendant Pinole Station Homeowners Association filed its own motion for judgment on the pleadings on April 12, 2024. The other defendants joined in that motion. The Court granted the MJOP on August 16, 2024. Plaintiff was granted leave to amend and was ordered to file any amended complaint by 4:00 p.m. on August 30, 2024.

Plaintiff never filed an amended complaint. On October 11, 2024, Defendant Pinole Station filed a motion for entry of judgment based on Plaintiff's failure to file an amended complaint. The other defendants joined the motion. The Court granted the motion on February 14, 2025. Judgment in Favor of Defendants and Against Plaintiff was entered on March 5, 2025. Notice of Entry of the Judgment was filed and served on March 21, 2025.

Thereafter, on June 2, 2025, Plaintiff filed three separate motions essentially requesting that the Court reconsider its earlier ruling. The Court denied all the motions making clear that it did not have jurisdiction to reconsider the order given the entry of judgment. On October 2, 2025, Plaintiff filed the instant motion. This motion is the fourth Plaintiff has filed in the trial court to reconsider its March 5, 2025, order of Judgment in Favor of Defendants and against Plaintiff as to all causes of action. Plaintiff has also filed a notice of appeal on October 21, 2025, indicating that he was appealing the judgment as well as the later orders.

Analysis

While styled as a "Motion for Hearing on Main Issue of the Complaint...", Plaintiff's motion is essentially a motion for reconsideration. As the Court has previously, on more than one occasion, stated:

"Motions to reconsider must be filed within 10 days of notice of entry of order and must be based on new facts and/or law. (CCP section 1008.) Plaintiffs motion is untimely and not based on new facts or new law. Moreover, '[a] court may reconsider its order granting or denying a motion and may even reconsider or alter its judgment so long as judgment as not been entered. Once judgment has been entered, however, the court may not reconsider it and loses its unrestricted power to change the judgment.'" (Passavanti v. Williams (1990) 225 Cal.App.3d 1602, 1606.)

As judgment has already been entered, the Court is without jurisdiction to reconsider its earlier order.

In addition, since entry of those orders, Plaintiff has filed a notice of appeal relating to the judgment and the Court's earlier orders.

"[T]he perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order...." (Cal. Code Civ. Proc. § 916 (a); *Varian Med. Systems, Inc. v. Delfino* (2005) 35 Cal4th 180, 189.) An appeal is "perfected" when a notice of appeal is timely filed. (*Kroger Co. v. Workers' Comp. Appeals Bd.* (2012) 210 Cal.App.4th 952, 959.) A stay on appeal from an appealable order deprives the trial court of jurisdiction to adjudicate a motion for reconsideration of that order, because the motion for reconsideration is not collateral to the appealed order. (*Young v. Tri-City Healthcare Dist.* (2012) 210 Cal.App.4th 35, 51-53.)

Plaintiff's filing of the notice of appeal further emphasizes that the Court does not have jurisdiction to reconsider its earlier ruling.

Sanctions

Repeated attempts to relitigate claims that have been finally determined can lead the Court to deem the Plaintiff a vexatious litigant. (Cal. Code Civ. Proc. § 391 (b)(2).) In addition, the filing of frivolous and meritless motions can lead to Plaintiff being sanctioned. (See e.g. Cal. Code Civ. Proc. §§ 128.5, 128.7.) The court cautions Plaintiff not to relitigate claims that have been finally determined, and not to file frivolous and meritless motions. Plaintiff has filed the same motion four times. This order marks the fourth time the court has denied a motion by the Plaintiff asking the trial court to rescind, reconsider, reverse, vacate or in any way revisit its March 5, 2025, order of Judgment in Favor of Defendants and against Plaintiff as to all causes of action.

Conclusion

Plaintiff's motion is **denied**.

2. 9:00 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
***HEARING ON MOTION IN RE: TO STRIKE 2ND AMENDED CROSS-COMPLAINT**
FILED BY: SUNPOINT PUBLIC ADJUSTERS, INC.
TENTATIVE RULING:

The Court on its own motion continues the hearing to Feb 6, 2025 at 9:00 am in Dept. 32.

3. 9:00 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
HEARING ON DEMURRER TO: TO 2ND AMENDED CROSS-COMPLAINT
FILED BY: SUNPOINT PUBLIC ADJUSTERS, INC.
TENTATIVE RULING:

The Court on its own motion continues the hearing to Feb 6, 2025 at 9:00 am in Dept. 32

4. 9:00 AM CASE NUMBER: C23-03274
CASE NAME: CARLOS CARRILLO MOLINA VS. RODRIGO MURILLO
*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT
FILED BY: CARRILLO MOLINA, CARLOS
TENTATIVE RULING:

The motion of Plaintiff for Leave to File a First Amended Complaint was properly served and no opposition was received. The motion is granted. Plaintiff shall file and serve the proposed First Amended Complaint no later than February 9, 2026. Defendants shall have 30 days after being served with the First Amended Complaint to file a responsive pleading. (Code of Civil Procedure § 471.5(a))

5. 9:00 AM CASE NUMBER: C24-01666
CASE NAME: NIRAJ GANDHI VS. SAN RAMON REGIONAL MEDICAL CENTER
*HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S THIRD AMENDED COMPLAINT
FILED BY: SAN RAMON REGIONAL MEDICAL CENTER
TENTATIVE RULING:

Before the Court is Defendant San Ramon Regional Medical Center ("Defendant," "SRRMC," or "the Hospital")'s motion to strike. The motion to strike relates to Plaintiff Niraj Gandhi ("Plaintiff" or "Gandhi")'s Third Amended Complaint for (1) Negligence, (2) Fraud and Misrepresentation, and (3) Intentional Infliction of Emotional Distress, and seeks to strike the amended complaint in its entirety or, in the alternative to strike Plaintiff's prayer for punitive damages.

Defendant moves to strike Plaintiff's Third Amended Complaint in its entirety on the ground that it was not timely filed; in the alternative, Defendant moves to strike Plaintiff's prayer for punitive damages on the ground that Plaintiff failed to state sufficient facts to allege punitive damages in that he failed to show by clear and convincing evidence that Defendant (1) knowingly retained an unfit employee, or (2) authorized or ratified wrongful misconduct.

Plaintiff, who is an *in propria persona* litigant, opposes Defendant's motion to strike the complaint in its entirety on grounds of *res judicata* and the doctrine of law of the case in that the Court already accepted the Third Amended Complaint; the Plaintiff opposes Defendant's motion to strike his prayer for punitive damages on the grounds that he expressly alleged vicarious liability and ratification using specific facts to support his legal conclusions.

Defendant's motion to strike Plaintiff's Third Amended Complaint in its entirety is denied, and the motion to strike Plaintiff's prayer for punitive damages is granted without leave to amend.

Factual Allegations and Background

This case arises from a dispute over the alleged loss of medical records.

Niraj Gandhi underwent a left heart catheterization and angiogram performed by cardiologist Dr. Arman Saw (“Dr. Saw”) at the SRRMC Catheterization Lab (“Cath Lab”) on November 24, 2022. (Third Amended Complaint (“TAC”) at 2:24-25; 5:1-7:5.; Ex. A, B.) Immediately after the procedure, Gandhi asked to be provided with the images and video captured during the procedure and Dr. Saw told him the Hospital would produce it on a CD with his discharge packet. (*Id.* at 7:5-11.) Gandhi did not receive a CD upon discharge, however. (*Id.*)

Gandhi contacted the Hospital’s medical records department in early December of 2022 to inquire about obtaining the images and video and he was twice given CDs by SRRMC’s medical records department purporting to contain them. (TAC at 7:16-18.; 8:1-6.) Both times, he alleges, the CDs did not contain images or video from the procedure. (*Id.* at 8:1-14.)

Gandhi ultimately sought a second opinion on his heart condition from Dr. Ramesh Veeragandham (“Dr. Veeragandham”) in June of 2023. (TAC at 3:12-13; 8:20-21.) Dr. Veeragandham advised Plaintiff that in order for him to determine whether an additional procedure was necessary, he would need to review the angiogram imaging, and, in its absence, a repeat procedure would be required. (*Id.* at 20:1-6) Dr. Veeragandham attempted to access the CDs Plaintiff provided from the Hospital and, finding no images or video, Dr. Veeragandham contacted the Cath Lab at SRRMC to seek the imaging from the Hospital directly. (TAC at 8:20-27.) Dr. Veeragandham made the following note July 6, 2023: “I tried to access the films in San Ramon but somehow there was no data. After back-and-forth, it was determined that the films were lost permanently.” (TAC at 9:1-6.)

On August 9, 2023, Gandhi underwent a second left heart catheterization, this time performed at John Muir Hospital in Concord by Dr. Christopher Chen. (TAC at 10:6-8.) Two days later he began to feel a “very strong burning sensation and numbness in [his] thigh and upper leg around the incision from where the catheterization was performed.” (*Id.* at 10:11-15.) He was subsequently diagnosed with a femoral nerve injury, likely caused by the second angiogram. (*Id.* at 4:8-14, 10:22-11:2.)

Gandhi filed the instant suit on July 1, 2024. (Northrop Dec. ¶ 2.) Defendant filed a demurrer and motion to strike Gandhi’s complaint following which Gandhi filed a First Amended Complaint on November 21, 2024. (*Id.* ¶ 3.)

A subsequent demurrer and motion to strike were heard March 7, 2025, leading to a Second Amended Complaint. (Northrop Dec. ¶ 5) Defendant filed another demurrer and motion to strike on August 1, 2025. (*Id.* ¶ 5.) On August 20, 2025, the Court granted the motion to strike with leave to amend and sustained Defendant’s demurrer without leave to amend as to a cause of action for Violation of the Confidentiality of Medical Information Act but overruled the demurrer as to the other claims. (*Id.* ¶¶ 6-7.) The Order After Hearing for the motion to strike granted leave to amend without giving a specific deadline for the amendment. (*Id.* Ex. A.)

Gandhi filed his Third Amended Complaint on September 5, 2025. (TAC at 1.) Defendant’s counsel sent a meet-and-confer letter to Gandhi on September 10, 2025, outlining the Defendant’s demand

that Gandhi withdraw his complaint and/or withdraw his prayer for punitive damages. (Northrop Dec. Ex. D.) A subsequent September 16, 2025, phone call confirmed Gandhi was not willing to withdraw his complaint or his prayer for punitive damages, prompting Defendant to file the instant motion. (*Id.* ¶ 11.)

Legal Standard

Motion to Strike

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof...” (Code Civ. Proc., § 435(b)(1).) The court may, upon a motion made pursuant to § 435 “(a) Strike out any irrelevant, false, or improper matter inserted in any pleading[,] [or] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.)

A motion to strike reaches only matters appearing on the face of the pleading or from matters of which the Court may take judicial notice. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.)

Amendment

“An amendment should be allowed where the defect, though one of *substance*, may possibly be cured by supplying omitted allegations, and the plaintiff has not had a fair opportunity to do so...” (*Grieves, supra*, 157 Cal.App.3d at 168.) Where the defect raised by a motion to strike is not reasonably capable of cure, leave to amend should be denied. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.)

Self-representation is not a ground for exceptionally lenient treatment. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) *Pro per* litigants are not entitled to special treatment and are held to the same rules of procedure as an attorney. (*Bai v. Yip* (2024) 107 Cal.App.5th 188, 197.)

Analysis

Untimeliness

Defendant contends that Gandhi’s Third Amended Complaint should be stricken in its entirety because it was untimely filed. (MTS at 3:9-15.) Plaintiff argues that his Third Amended Complaint should not be stricken based on the doctrines of law of the case and *res judicata*, because the Court previously accepted the Third Amended Complaint and denied a subsequent motion for leave to amend nunc pro tunc as moot. (Opp. to MTS at 3:3-7, Gandhi Dec. Ex. A.)

Law of the Case and *res judicata*

As threshold issues, neither the doctrine of law of the case, nor *res judicata* apply here.

Under the doctrine of law of the case, an appellate court’s binding legal determination controls the outcome during subsequent proceedings in the same case. (*People v. Barragan* (2004) 32 Cal.4th 236,

246; *Kowis v. Howard* (1992) 3 Cal.4th 888, 892-893.) The doctrine of law of the case applies only to an appellate court's decision on a question of law. (*Barragan, supra*, 32 Cal.4th at 246.)

Here, law of the case is inapplicable because no appellate court has heard this case or issued any binding legal determination as to the filing of Gandhi's Third Amended Complaint.

Res judicata prohibits the relitigation of claims and issues which have already been adjudicated in an earlier proceeding. The doctrine has two components. In its primary aspect[,] the doctrine of *res judicata* or claim preclusion operates as a bar to the maintenance of a second suit between the same parties on the same cause of action. The secondary aspect is collateral estoppel or issue preclusion, which does not bar a second action but precludes a party to an action from relitigating in a second proceeding matters litigated and determined in a prior proceeding.

(*Kelly v. Vons Companies, Inc.* (1998) 67 Cal.App.4th 1329, 1335 (nested quotations omitted).)

To establish a claim of collateral estoppel a party must demonstrate (1) the identical issue was decided in a prior adjudication, (2) there was a final judgment on the merits, and (3) the party against whom the claim is asserted was a party or in privity with a party to the prior adjudication. (*Rohrbasser v. Lederer* (1986) 179 Cal.App.3d 290, 297.)

Here, *res judicata* is inapplicable because there was not a final judgment on the merits as to this issue. The Court merely determined on a procedural basis that relief under California Code of Civil Procedure § 473 was unnecessary because the Third Amended Complaint was already accepted by the Court and filed in this case.

Striking Third Amended Complaint on Grounds of Untimeliness is Unsupported

Defendant's argument that the untimeliness of Gandhi's Third Amended Complaint is grounds for it to be stricken, however, also fails.

"The time in which any act provided by law is to be done is computed by excluding the first day, and including the last, unless the last day is a holiday, and then it is also excluded." (Code Civ. Proc., § 12.) "If any city, county, state, or public office, other than a branch office, is closed for the whole of any day, insofar as the business of that office is concerned, that day shall be considered as a holiday for the purposes of computing time under Sections 12 and 12a." (Code Civ. Proc., § 12b.)

Here, the Court determines that Gandhi's filing of the Third Amended Complaint on September 5 came 11 court days after the August 20, 2025 entry of the Order After Hearing. (Code Civ. Proc., § 1003; *Maxwell v. Perkins* (1953) 116 Cal.App.2d 752, 756 [an order becomes legally effective at the time it is signed and filed.])

Under California Rule of the Court 3.1320(g), following a ruling on a demurrer, unless otherwise ordered, leave to amend within 10 days is deemed granted. There is no such rule regarding leave to amend granted in relation to a motion to strike either in the California Rules of Civil Procedure or the California Rules of the Court. “If a motion to strike is granted pursuant to Section 436, the court may order that an amendment or amended pleading be filed *upon terms it deems proper*.” (Code Civ. Proc., § 472a(d) (emphasis added).)

Though the law does not generally *require* a trial court to specify the time to amend after ruling on a demurrer or motion to strike (see § 472b; rule 3.1320(g)), some additional degree of clarity and special care may be necessary to serve the ends of justice and maintain public confidence in the judicial system in cases [with *pro per* parties.] And where that clarity has not been provided, the court may relieve a self-represented litigant from their default or noncompliance, particularly where the noncompliance does not affect the substantial rights of the parties.

(*Bai, supra*, 107 Cal.App.5th at 198.)

Where there is no evidence that a movant was purposely dilatory in the filing of an untimely amended complaint and the non-movant suffered no prejudice, it is error to strike an amended complaint. (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 729-730.) There is no absolute right to have a pleading stricken for lack of timeliness in filing where no question of jurisdiction is raised and where the late filing was “a mere irregularity.” (*Tuck v. Thuesen* (1970) 10 Cal.App.3d 193, 196 (disapproved on other grounds by *Neel v. Magana, Olney, Levy, Cathcart & Gelfand* (1971) 6 Cal.3d 176.)) Whether to grant or deny the motion is at the discretion of the court. (*Ibid.*)

SRRMC cites CRC 3.1320(g) and *Bai, supra*, 107 Cal.App.5th 188, for the proposition that Gandhi had 10 days from the date of the entry of the Order After Hearing to amend, and thus by filing on September 5, 2025, he missed the deadline. But neither CRC 3.1320(g) nor *Bai* support this position.

Here, Gandhi was granted leave to amend in relation to the Court’s August 20, 2025, ruling on SRRMC’s motion to strike, *not* SRRMC’s accompanying demurrer. (Northrop Dec. Ex. A, B.)

California Rule of the Court 3.1320(g) relates specifically and only to demurrers; it reads as follows:

Leave to answer or amend Following a ruling on a ***demurrer***, unless otherwise ordered, leave to answer or amend within 10 days is deemed granted, except for actions in forcible entry, forcible detainer, or unlawful detainer in which case 5 calendar days is deemed granted.

(Cal Rules of Court, Rule 3.1320(g) (emphasis added).)

Meanwhile, *Bai* is a case where a demurrer was filed in tandem with a motion to strike, and there the court relied on California Code of Civil Procedure § 472b and CRC 3.1320(g), both of which relate to the filing of and responding to demurrers. Neither of these statutes prescribe a 10-day deadline to amend following motions to strike. (*Bai, supra*, 107 Cal.App.5th at 195; Civ. Code §§ 581(f)(2), (4), 472b; CRC 3.1320(g).)

Here, the Order After Hearing for the motion to strike granted leave to amend without giving a specific deadline for the amendment. (Northrop Dec. Ex. A.) However, pursuant to California Code of Civil Procedure § 472a(d), where a motion to strike is granted with leave to amend “the court may order that an amendment or amended pleading be filed *upon terms it deems proper*.” (Code Civ. Proc., § 472a(d) (emphasis added).) And as noted in *Bai*, where *pro per* parties are concerned, some additional degree of clarity may be necessary to serve the ends of justice in setting deadlines for leave to amend with regard to motions to strike and demurrers, and “where that clarity has not been provided, the court may relieve a self-represented litigant from their default or noncompliance, particularly where the noncompliance does not affect the substantial rights of the parties.” (*Bai, supra*, 107 Cal.App.5th at 198.)

Defendant argues that Gandhi will not be prejudiced if he is required to rely on his Second Amended Complaint in the event that his Third Amended Complaint is stricken in its entirety. This is an equitable argument that has no bearing on the merits of this legal issue.

There has been evidence demonstrating that Gandhi was purposely dilatory in filing his Third Amended Complaint. (*Amacorp Industrial Leasing Co., supra*, 237 Cal.App.2d at 729-730.) Even if, assuming *arguendo*, there was a 10-day deadline to amend following motions to strike, the Court finds, in its discretion, that the delay, such as it was, does not prejudice SRRMC and, accordingly, the Court declines to strike the entire Third Amended Complaint on this ground. (Code Civ. Proc., § 472a(d); *Tuck, supra*, 10 Cal.App.3d at 196.)

Punitive Damages

Defendant contends that Gandhi failed in his Third Amended Complaint to allege any facts to support punitive damages. Namely, Defendant notes, Gandhi did not plead facts that would expose Defendant to liability for punitive damages given that SRRMC is a corporation. Defendant argues that he failed to allege that SRRMC knowingly retained an unfit employee or authorized or ratified wrongful misconduct and he further failed to allege that an officer, director, or managing agent of the corporation had advance knowledge and conscious disregard, or authorized or ratified an act of oppression, fraud, or malice. (MTS at IV.; Code Civ. Proc., § 3294(b).)

Gandhi contends that he alleged detailed facts that are supported by deposition testimony that Defendant’s managing agent, registered nurse and supervisor of the Cath Lab Mike Miller, ratified a fraudulent scheme to conceal the loss of his medical records from him by issuing him blank CDs. (Opp. to MTS at 2:1-7.)

A plaintiff may recover punitive damages in an action for the breach of an obligation not arising out of

contract where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227; Code Civ. Proc., § 3294(a).) To survive a motion to strike, an allegation of punitive damages requires the plaintiff to plead the ultimate facts showing entitlement to such relief. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1254.)

As used in this section, the following definitions shall apply:

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.

(3) “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294(c).)

An allegation that an intentional tort was committed is not sufficient to warrant an award of punitive damages. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “*There must be an intent to vex, annoy or injure*. Mere spite or ill will is not sufficient; and mere negligence, *even gross negligence is not sufficient to justify an award of punitive damages.*” (*Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894 (emphasis in original).) “Malice” required by California Civil Code § 3294 implies acts taken in the spirit of mischief or with criminal indifference. (*Taylor v. Superior Court of Los Angeles County* (1979) 24 Cal.3d 890, 894 (citations omitted).) To establish malice, a plaintiff must demonstrate that the defendant was “aware of the probable dangerous consequences of his conduct, and that he wilfully and deliberately failed to avoid those consequences.” (*Id.* at 895-896.)

‘[P]unitive damages should not be allowable upon evidence that is merely consistent with the hypothesis of malice, fraud, gross negligence or oppressiveness. Rather some evidence should be required that is inconsistent with the hypothesis that the tortious conduct was the result of a mistake of law or fact, honest error of judgment, over-zealousness, mere negligence or other such noniniquitous human failing.’

(*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1288, fn. 14 (citation omitted).)

The circumstances of oppression, fraud or malice must be alleged in the pleading to support a claim

of punitive damages. (*Grieves, supra*, 157 Cal.App.3d at 166.) Charges of malice, fraud, or oppression must be pled with specificity. (*G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.) General allegations are insufficient to meet the specific pleading requirement. (*Anschutz Entertainment Group, Inc. v. Snepp* (2009) 171 Cal.App.4th 598, 643.)

Plaintiff's Conclusory Allegations are Insufficient to Support a Claim of Oppression Fraud or Malice

Gandhi in his Third Amended Complaint alleged that:

Defendants' conduct constitutes despicable conduct carried out with a willful and conscious disregard for the rights and safety of the Plaintiff, demonstrating fraud and malice. Defendants' repeated delivery of blank CDs, while knowing the requested records did not exist, was a calculated and deceitful act intended to conceal their negligence and deceive Plaintiff.

(TAC at 15:17-22.)

To establish "malice," a plaintiff must demonstrate that the defendant was aware of the probable dangerous consequences of his conduct and deliberately failed to avoid those consequences. "Malice" means conduct with which the defendant intends to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294(c).) Despicable conduct "connotes conduct that is "... so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.'" (*Lackner v. North*, 135 Cal.App.4th 1188, 1210 (citation omitted).)

Here, Plaintiff alleges that Defendant negligently lost his medical records and attempted to conceal that fact. (TAC at 15:17-22.) He bolsters this by simply citing the statute's definition for malice in a conclusory fashion. (*Ibid.*) Where Plaintiff is more specific in his allegations – for instance, the claim that Miller, along with the other staff in the room during his procedure, "must have been aware of the images and videos not being saved on the server," and "Mr. Miller had advance knowledge of the non-existence [sic] of the records being sought but hid the facts from the Plaintiff and ratified the conduct" his allegations are a far cry from an intent to cause injury to the plaintiff with a willful and conscious disregard of the rights or safety of others. (TAC at 16:3-5, 16:25-17:1; Civ. Code, § 3294(c).)

As noted *supra*, an allegation that an intentional tort was committed is not sufficient to warrant an award of punitive damages. (*Grieves, supra*, 157 Cal.App.3d at 166.) Intent to "vex, annoy or injure" is required, and "mere negligence, even gross negligence is not sufficient to justify an award of punitive damages." (*Ebaugh, supra*, 22 Cal.App.3d at 894 (emphasis in original).)

Gandhi contends in his Opposition to Defendant's Motion to Strike that Miller "admitted he 'noticed there was no images' yet failed to inform Plaintiff. The hospital ratified this silence by allowing [the medical records department] to issue blank CDs to Plaintiff for months." (Opp. to MTS at 1-7.)

Gandhi's argument comes without a corresponding citation to his Third Amended Complaint to this.) Even if pleaded, the allegation that the hospital "allowed the medical records department to issue blank CDs to the Plaintiff," at best describes a negligent omission, rather than an act constituting malice, oppression or fraud.

Gandhi's allegations are by and large conclusory, and when they are specific they do not support a claim for punitive damages. Where even a claim of an intentional tort or gross negligence is not enough to support a claim of malice, oppression, or fraud, for the purposes of punitive damages, the allegations in Gandhi's Third Amended Complaint are insufficient for the same. (*Grieves, supra*, 157 Cal.App.3d at 166; *Ebaugh, supra*, 22 Cal.App.3d at 894; Code Civ. Proc., § 3294.)

Conclusion

Plaintiff fails to plead sufficient facts demonstrating malice, oppression, or fraud to support an award of punitive damages. (*PH II, Inc., supra*, 33 Cal.App.4th at 1683.) The defect in his prayer for punitive damages is not reasonably capable of cure given that Plaintiff has had a fair opportunity to cure the defect. Plaintiff's third version of his complaint, still fails to meet the requisite burden. (*Grieves, supra*, 157 Cal.App.3d at 168; *CLD Construction, Inc., supra*, 120 Cal.App.4th at 1146.) This does not preclude Plaintiff from seeking leave to amend his complaint in the future, should he uncover facts in discovery that support a prayer for punitive damages.

For the foregoing reasons, Defendant's motion to strike Plaintiff's Third Amended Complaint in its entirety is **denied** and Defendant's motion to strike Plaintiff's prayer for punitive damages is **granted without leave to amend**.

6. 9:00 AM CASE NUMBER: C25-00901
CASE NAME: MOUNICA AITHA VS. VINOD PASPUNOORI
*HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS
FILED BY: PASPUNOORI, VINOD
TENTATIVE RULING:

Defendants Vinod Paspunoori and Mounica Paspunoori aka Mounica Challa's motion to quash is **granted**.

Background

Plaintiff Mounica Aitha aka Mounica Paspunoori is an individual who, by her own estimation, has been continuously domiciled in California since late 2013 or early 2014. (Aitha dec. ¶7. Note the Defendants assert that Aitha moved to California in December 2014 when she got married. (V. Paspunoori Dec. ¶24).)

Plaintiff is suing her Brother (Vinod) and her sister-in-law (Mounica). Plaintiff alleges that in 2009 she gave Defendants over \$200,000 so that Defendants could buy property for Plaintiff, but they failed to do so. (Comp. ¶13.) Plaintiff also alleges that between 2008 and 2012, Defendants sent

almost \$200,000 from the United States to a bank account in India that they opened in Plaintiff's name. (Comp. ¶14.) Plaintiff alleges that Defendants used her social security number, identification documents and personal information to obtain loans and financial benefits. (Comp. ¶15.) Plaintiff alleges that Defendants used Plaintiff's identity to incorporate multiple corporations and launder money from the US to India. (Comp. ¶16.) Plaintiff alleges Defendants sent almost \$50,000 from a US bank account to India in 2012. (Comp. ¶17.) She alleges that she was subjected to audits and scrutiny by the authorities due to the cross-border transactions by Defendants. (Comp. ¶18.)

Plaintiff also alleges that after the death of their father, Defendants seized the father's estate by excluding Plaintiff and other rightful heirs. (Comp. ¶19.) A copy of the death certificate shows that the father died in May 2021 in India.

Plaintiff alleges that she did not discover Defendants' fraudulent or illicit activities until 2023 and 2024. (Comp. ¶20.) She claims that Defendants continue to possess her social security number and other personal information and that she continues to be a victim of identity theft. (Comp. ¶21.) After Plaintiff sent a legal notice to Defendants, they threatened to injure Plaintiff and her family. (Comp. ¶22.)

Plaintiff is suing for (1) breach of contract, (2) breach of fiduciary duty, (3) negligence misrepresentation, (4) restitution based on quasi-contract or unjust enrichment, (5) identity theft, (6) conversion, (7) fraud, (8) fraud (concealment), (9) RICO violations and (10) accounting.

Plaintiff's causes of action rest on two main theories: (1) that Plaintiff gave Defendants money for the purpose of Defendants buying property for Plaintiff and (2) Defendants used Plaintiff's social security number and other personal information to help Defendants transfer money from the United States to India.

The breach of contract, restitution, conversion and accounting causes of action are based on the first theory. (Comp. ¶¶13, 26, 48, 57, 83.) The breach of fiduciary duty, negligence, fraud and RICO causes of action are based on the second theory. (Comp. ¶¶32, 38, 62, 71, 77, 78.) The eighth cause of action for fraud also alleges misstatements regarding the inheritance assets (presumably from Plaintiff's father). (Comp. ¶71.)

Defendants bring this motion to quash arguing a lack of personal jurisdiction as they never lived in California. Vinod Paspunoori attended a master's program in Illinois in 2006 and thereafter lived in several states, but not California. Vinod has lived in Georgia since February 2016. (V. Paspunoori dec.) Mounica Paspunoori lived in the United States starting in 2013, but never lived in California. She married Vinod in 2013 and became a resident of Georgia in February 2016. (M. Paspunoori dec.) Both Defendants were personally served with the summons and complaint in Georgia.

Plaintiff's opposition was filed late, but the Court has exercised its discretion and considered the opposition.

Legal Discussion

“When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction.’ [Citation.] If the plaintiff meets this initial burden, then the defendant has the burden of demonstrating ‘that the exercise of jurisdiction would be unreasonable.’ [Citation.]” (*Id.* at 273.) In meeting their initial burden, “ ‘[t]he plaintiff must come forward with affidavits and other competent evidence to carry this burden and cannot simply rely on allegations in an unverified complaint.’ [Citation.]” (*Preciado v. Freightliner Custom Chassis Corp.* (2023) 87 Cal.App.5th 964, 976.)

“California courts may exercise personal jurisdiction on any basis consistent with the Constitutions of California and the United States. (Code Civ. Proc., § 410.10.) The exercise of jurisdiction over a nonresident defendant comports with these Constitutions ‘if the defendant has such minimum contacts with the state that the assertion of jurisdiction does not violate “ ‘traditional notions of fair play and substantial justice.’ ” ’ [Citation.]” (*Pavlovich v. Superior Court* (2002) 29 Cal.4th 262, 268.) Here, there is no suggestion that Defendants are subject to general jurisdiction. Thus, the question is whether specific jurisdiction exists.

“When determining whether specific jurisdiction exists, courts consider the “ ‘relationship among the defendant, the forum, and the litigation.’ ” [Citation.] A court may exercise specific jurisdiction over a nonresident defendant only if: (1) ‘the defendant has purposefully availed himself or herself of forum benefits’ [citation]; (2) ‘the “controversy is related to or ‘arises out of’ [the] defendant’s contacts with the forum” ’ [citation]; and (3) “the assertion of personal jurisdiction would comport with ‘fair play and substantial justice’ ” [citation].” (*Pavlovich, supra*, 29 Cal.4th at 269.)

When determining purposeful availment the Court can apply the forum benefits test, the contracts test or the effects test.

“Under the forum benefits test, purposeful availment may be found where the defendant purposefully ‘benefits in the forum by reaching out to forum residents to create an ongoing’ relationship. [Citation.]” (*ParaFi Digital Opportunities LP v. Egorov (ParaFi)* (2025) 108 Cal.App.5th 124, 136.)

“Under the contracts test, courts look to ‘prior negotiations and contemplated future consequences, along with the terms of the contract and the parties’ actual course of dealing’ to evaluate purposeful availment. [Citation.]” (*ParaFi, supra*, 108 Cal.App.5th at 140.)

“Under the effects test, specific personal jurisdiction ‘ “may be exercised over a defendant who has caused an effect in the forum state by an act or omission occurring elsewhere.” ’ [Citations.] However... the effects test ‘requires express aiming at the *forum* (not necessarily at the plaintiff).’ [Citation.] Thus, under the effects test, specific jurisdiction lies “*only* if [the defendant’s] suit-related conduct creates a *substantial connection* with that state”; it is not sufficient that a defendant ‘targeted conduct at a plaintiff he knows resides in the forum state.’ [Citation.]” (*ParaFi, supra*, 108

Cal.App.5th at 138; accord *David L. v. Superior Court* (2018) 29 Cal.App.5th 359, 373.)

California has followed the effects test for years. (*Pavlovich, supra*, 29 Cal.4th 262, 272-73.) However, the effects test was limited by the United States Supreme Court in *Walden v. Fiore* (2014) 571 U.S. 277. *ParaFi* and *David L.* provide examples of the application the effects test after the holding in *Walden*.

In *ParaFi*, the California plaintiffs invested in defendant's company and later sued for fraud and unfair competition related to the company. The court found there was no specific jurisdiction because the plaintiffs reached out to defendant to invest in the company. There was no evidence that defendant opened the investment round to California residents generally or otherwise solicited California investors. (*ParaFi, supra*, 108 Cal.App.5th at 138-170.) The court rejected the argument that the plaintiffs were injured in California and the defendant knew or should have known that the plaintiffs would feel the consequences of his conduct in California. The court explained that " 'mere injury to a forum resident is not a sufficient connection to the forum.' [Citation.]" (*Id.* at 138.)

In *David L.*, the court found there was no specific jurisdiction in a paternity action where the father had visited with the mother in California three times and after that conception occurred outside of California. The court noted that the father was aware that the mother was a California resident and the child lived in California since her birth. The court explained that it was not enough that the father knew the mother "was a California resident and reasonably knew the effects of any intercourse resulting in pregnancy would necessarily be felt in California. [Citation.] Simply directing conduct at a plaintiff knowing that she has significant California connections does not satisfy the minimum contacts inquiry. [Citation.]" (*David L., supra*, 29 Cal.App.5th at 374.)

Here, Defendants have challenged jurisdiction. Once Defendants challenge jurisdiction, the burden shifts to Plaintiff to provide facts justifying the exercise of jurisdiction, which is done by providing declarations and other competent evidence. For the breach of contract cause of action, Plaintiff must show that the defendants have purposefully availed themselves of forum benefits, For the intentional tort cause of action, the Court looks to the effects test. Here that means Plaintiff must show that Defendants' suit-related conduct creates a substantial connection with California. As noted above, it is not sufficient that a defendant targeted conduct at a plaintiff he knows resides in the forum state. Finally, for all causes of action, Plaintiff must also show that the controversy is related to or arises out of the Defendant's contacts with the forum, and the assertion of personal jurisdiction would comport with fair play and substantial justice.

Analysis

Here Plaintiff argues that there is specific jurisdiction because (1) Defendants purposefully directed their conduct towards a known California resident, (2) Plaintiff's claims arise out of or related to Defendants' California directed conduct and (3) exercising jurisdiction comports with fair play and substantial justice.

Purposeful Availment

Plaintiff first argues that Defendants purposefully directed their conduct towards a known California resident.

There is a dispute regarding when Plaintiff moved to California. Aitha claims that she moved to California in late 2013 or early 2014 and has lived in California ever since. (Aitha dec. ¶7.) Vinod claims that Aitha came to the United States in 2012 and lived in various states. (V. Paspunoori dec. ¶¶17-23.) Vinod claims that Aitha moved to California in December 2014 when she got married. (V. Paspunoori dec. ¶24.) For this analysis, the Court accepts Aitha's statement that she moved to California in late 2013 or early 2014.

As to the breach of contract cause of action, courts look to prior negotiations and contemplated future consequences, along with the terms of the contract and the parties' actual course of dealing to evaluate purposeful availment. Here, there are no allegations or evidence showing that the contract was to be performed in California or that Plaintiff lived in California when the contract was made. Thus, there is no purposeful availment under the contracts test. Further, there is no evidence that Plaintiff was a California resident when the parties entered into the contract or other evidence showing that Defendants reached out to California residents and thus, there is no purposeful availment under the forum benefits test.

As to the tort causes of action, the Court applies the effects test. Under the effects test, the plaintiff must show that the defendant engaged in suit-related conduct that creates a *substantial connection* with California.

The complaint primarily alleges actions by Defendants from 2008 to 2012. However, none of the parties lived in California until late 2013. Further, as noted above, it is not sufficient to show that a defendant targeted conduct at a plaintiff that he knows resides in California

Plaintiff points to one bank transaction in 2012 where \$10,470 was to be sent to Orange It Solutions (a company apparently related to the parties) from a person in Big Bear Lake, California. (Aitha Dec., Ex. C.) Plaintiff has offered no other specific connections of the Defendants to California from 2008 to 2012. This sole bank transaction, occurring before the time Plaintiff herself claims to have been residing in California, is insufficient to show a substantial connection with California.

Plaintiff also provides an email chain discussing finances and other family issues in August 2014. (Aitha Dec., Ex. B.) These emails do not show how the allegations in the complaint connect to California. Plaintiff argues that Defendants continued their wrongful conduct through 2024 and thus, they directed conduct at California. But Plaintiff has neither alleged nor provided evidence of Defendants' specific actions from 2014 to 2024. Further, the Court disagrees that alleged false statements by Defendant concerning financial transactions that occurred before Plaintiff moved to California would create a substantial connection to California.

Plaintiff's allegations regarding identity theft include almost no specific details. Plaintiff has

not provided details in her declaration or other evidence to show when these actions occurred or how it connects to California. Plaintiff states that after she learned of Defendants' conduct, she filed reports for identity theft in 2025. (Aitha Dec., Ex. E and H.) These general allegations are not specific enough to demonstrate that Defendants had a substantial connection to California. Rather, these assertions show only that Plaintiff lived in California when she claims that she discovered Defendants' actions. There is insufficient evidence as to the allegations regarding identity theft to find a sufficient connection with California.

Plaintiff has also included an allegation regarding Defendant Vinod inheriting their father's estate in India. That allegation, however, deals with a dispute in India and there is no connection with California.

Finally, in her declaration, Plaintiff claims that Defendant Vinod falsely filed tax returns for Plaintiff from 2012 to 2014. The complaint does not include a claim related to filing tax returns without permission. Further, Plaintiff has not included evidence showing a connection between the alleged tax returns and California.

The Court has considered all the evidence offered by Plaintiff and finds that she has not shown that either Defendant engaged in conduct that creates a substantial connection with California. Therefore, Plaintiff has not shown that Defendant purposefully availed themselves of California and the Court finds that there is no specific jurisdiction over the Defendants.

Whether the Controversy is related to or "arises out of" the Defendants' Contacts with the Forum and Fair play and substantial justice.

Plaintiff also argues that her causes of action arise out of or relate to Defendants' California directed conduct.

Plaintiff cites *Snowney v. Harrah's Entertainment, Inc.* (2005) 35 Cal.4th 1054, 1063 and *Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 462-564 for the proposition that "where a defendant continues wrongful conduct while knowing that the plaintiff resides in California, the relatedness requirement is satisfied." Both cases are distinguishable on their facts. *Snowney* involved hotels advertising on websites to California residents and *Vons* involved business suing for financial losses because the defendant had provided contaminated meat in another state, but negative public opinion and thus, financial losses reached business in California. (The Court notes that there is some question as to whether the standard applied in *Snowney* and *Vons* can still be followed given the holding in *Bristol-Myers Squibb Co. v. Superior Court* (2017) 582 U.S. 255. In *Bristol-Myers*, the court held that "specific jurisdiction is confined to adjudication of issues deriving from, or connected with, the very controversy that establishes jurisdiction." (*Id.* at 262; see also *Rivelli v. Hemm* (2020) 67 Cal.App.5th 380, 400.)

The Court finds that Plaintiff has not shown that Defendants purposefully availed themselves in California. Because the Court finds no evidence of purposeful availment, the Court need not consider whether any such conduct is sufficiently related to each alleged cause of action or whether

exercising jurisdiction comports with fair play and substantial justice. (*ParaFi, supra*, 108 Cal.App.5th at 141 [“plaintiffs’ evidence does not demonstrate purposeful availment under any test; thus, we do not reach plaintiffs’ arguments about the remaining prongs of the specific jurisdiction analysis”.])

The Defendants’ motion to quash is **granted**.

Objections to Evidence

The Court rules on Defendants’ objections to evidence as follows:

1. Overruled.
2. Overruled.
3. Overruled.
4. Sustained as to the description of the attached document. Otherwise overruled.
5. Overruled.
6. Sustained. Lacks personal knowledge.
7. Overruled.
8. Overruled.
9. Sustained as to the description of the attached document. Otherwise overruled.
10. Overruled.
11. Overruled.
12. Overruled.
13. Overruled.
14. Overruled.
15. Overruled.
16. Overruled.
17. Overruled.
18. Overruled.
19. Overruled.
20. Overruled.
21. Overruled.
22. Overruled.
23. Overruled.

7. 9:00 AM CASE NUMBER: C25-01454
CASE NAME: PAP POGHOSYAN VS. MERCEDES-BENZ USA, LLC,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: MERCEDES-BENZ USA, LLC,
TENTATIVE RULING:

Defendant MERCEDES-BENZ USA, LLC’s Motion to Compel Binding Arbitration and Stay Proceedings has been withdrawn. The matter is dropped from calendar.

Court maintains the Case Management Conference date of March 5, 2026 at 8:30 am, in Dept. 32 to review the status of the case. Unless this case has been resolved and dismissed, parties to file and serve a Case Management Conference Statement 15 days prior to the CMC.

8. 9:00 AM CASE NUMBER: C25-02399
CASE NAME: ROGER MONTOYA VS. PACIFIC BELL TELEPHONE COMPANY
HEARING ON DEMURRER TO: COMPLAINT
FILED BY:
TENTATIVE RULING:

The unopposed demurrer of defendant Contra Costa County is dropped from calendar as moot. The Court notes that the Plaintiff filed a request for dismissal of defendant Contra Costa County without prejudice on October 13, 2025.

9. 9:00 AM CASE NUMBER: MSC22-00100
CASE NAME: RIDEAU VS GHC OF CONTRA COSTA, ET AL.
HEARING ON SUMMARY MOTION
FILED BY: GHC OF CONTRA COSTA, LLC
TENTATIVE RULING:

Motion **continued** by the Court to February 6, 2026 at 9:00 a.m.

10. 9:00 AM CASE NUMBER: MSC22-00100
CASE NAME: RIDEAU VS GHC OF CONTRA COSTA, ET AL.
HEARING ON SUMMARY MOTION
FILED BY: NGUYEN-TRAXLER, ANN, MD
TENTATIVE RULING:

Motion **continued** by the Court to February 6, 2026 at 9:00 a.m.

11. 9:00 AM CASE NUMBER: N25-2066
CASE NAME: CLAIM OF: AYUSHMAN SENMAZUMDARAYUSHMAN SENMAZUMDAR
*HEARING ON MINOR'S COMPROMISE
FILED BY: SENMAZUMDAR, JUDHAJIT
TENTATIVE RULING

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged with the clerk's office on December 16, 2025.

12. 9:01 AM CASE NUMBER: C23-02761

CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON

***HEARING ON MOTION FOR DISCOVERY COMPEL THIRD PARTY MAGIDOV CPA TO COMPLY WITH DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS, PRODUCE RESPONSIVE DOCUMENTS, AND MONETARY SANCTIONS**

FILED BY: JOHNSON, GARY

TENTATIVE RULING:

Factual Context of Discovery Motion and Scope of the Subpoena Sought

Defendant and Cross-Complainant Gary Johnson, by and through his attorney, Micah Jacobs, issued a subpoena for production of business records to Magidov CPA, a third-party witness, on March 5, 2025 (the "Subpoena"). As alleged in the now operative Second Amended Cross-Complaint ("SACC"), Magidov CPA is the accounting firm that was hired by the plaintiff Sunpoint Public Adjusters, Inc. ("Sunpoint") to prepare a fair market valuation of Sunpoint in connection with a buy-out of defendant Johnson's 20% ownership interest in Sunpoint. (SACC ¶¶ 15-28). The Second Amended Cross-Complaint alleges a conspiracy by which Sunpoint hired Magidov CPA to prepare an undervalued valuation of Sunpoint. The 2ACC alleges that Sunpoint withheld critical information from Magidov CPA, and instead provided a limited range of financial records to Magidov CPA for the intended purpose of artificially minimizing Sunpoint's corporate valuation. The 2ACC alleges that Cross Defendants did this to force Defendant Johnson to sell his stock in Sunpoint below its fair value amount.

The Subpoena to Magidov CPA sought:

- (1) the Business Valuation Analysis 20 that Magidov CPA prepared for Sunpoint;
- (2) all communications between Magidov CPA and the Cross-Defendants or anyone else about the valuation project for Sunpoint; and
- (3) all documents that were provided to Magidov CPA and upon which it relied in preparing the Valuation for Sunpoint. (See Jacobs Decl., ¶ 3, Exh. 1.)

The parties entered into a stipulated protective order. Thereafter, on August 7, 2025, Magidov CPA produced 439 pages of documents. Counsel for Defendant Johnson immediately reviewed the documents and informed Magidov's counsel that the production appeared to be missing any email communications regarding the Sunpoint valuation project as requested in #2 above. Magidov's counsel acknowledged, on August 7, 2025, that it possessed an additional 1500 pages of responsive emails and attachments.

Defendant Johnson's moving papers, filed two months later on October 7, 2025, asserted that "Since that time [August 7, 2025], however, [Magidov] has failed and refused to produce other responsive documents, including about 1500 pages of critical email communications and attachments it acknowledged having but refuses to produce.

About two weeks later, on October 23, 2025, Magidov's counsel emailed the approximately 1500

pages of documents to Defendant Johnson. (Angioni Decl., Ex. C) Magidov's counsel requested the motion be taken off calendar, in view of the production. (Angioni Dec., ¶ 6, Ex. C)

On November 4, 2025, Defendant Johnson's counsel sent an email to Magidov's counsel declining to withdraw the motion to compel. (Jacob's Reply Dec., Ex. A) Defendant Johnson's counsel asserted there was "substantial duplication and hundreds of pages are completely unreadable and illegible due to formatting issues," pointed out that the emails produced did not have any of their original attachments, argued that they could not get all of the emails from Plaintiff Sunpoint "because it appears that key documents were sent by Michael Thchalikian and not Sunpoint directly," pointed out the lack of any of Magidov's internal emails regarding the Sunpoint valuation project, and requested follow up on a reference to documents provided to Magidov from Sunpoint via Dropbox.

Extent of Remaining Discovery Dispute in view of Post Motion Production

Defendant Johnson states that after his November 4 email to Magidov's counsel, he did not hear from Magidov's counsel until January 15, 2026. (Jacob's Reply Dec. ¶¶ 7-8)

On January 15, 2026, Magidov's counsel emailed Defendant Johnson's counsel acknowledging that Magidov "withheld certain email attachments from the document production due to the presence of sensitive financial and personal identifying information, including Social Security numbers." (Angioni Dec., ¶ 7, Ex. D) Magidov's counsel asserts that neither Plaintiff nor Defendant addressed her questions concerning "the process of protecting this highly sensitive information." (Angioni Dec., ¶ 7, Ex. D)

Magidov's counsel asserts that other than these attachments there are no documents at issue in this request for production of documents.

Defendant Johnson's counsel asserted "We have offered to pay 50% of the cost of production and Sunpoint has agreed to pay the other 50%." (Jacobs Reply Dec. ¶ 6)

Defendant Johnson argued that the stipulated protective order in this case permits a nonparty to designate productions as "Confidential" or "Highly Confidential – Attorneys' Eyes Only."

Magidov has taken the position that it must redact highly sensitive financial information from the attachments, including Social Security numbers.

Magidov's objections to emails between it and Plaintiff Sunpoint

Magidov's counsel objected several times during the meet and confer correspondence with Defendant Johnson's counsel to having to produce, as a nonparty, emails that Defendant Johnson could obtain from Plaintiff Sunpoint. (See, e.g., Email from Ms. Angioni dated October 15, 2025 12:12 pm, contained in Ex. A to Jacob's Reply Dec.) In that email, Magidov's counsel referenced *Calcor Space Facility, Inc., v. Superior Court* (1997) 53 Cal. App. 4th 216 for the proposition that "the burdens of discovery may be placed on a nonparty "only if" parties "do not possess the material sought to be

discovered” and the subpoenaing party “demonstrate[s] why it cannot obtain the needed materials” from parties.

In an email dated November 4, 2025, Defendant Johnson listed the following concerns about the 1500 pages of emails: [1] substantial duplication and hundreds of pages are completely unreadable and illegible due to formatting issues,” [2] emails produced did not have any of their original attachments, [3] Defendant could not get all of the emails from Plaintiff Sunpoint “because it appears that key documents were sent by Michael Thchalikian and not Sunpoint directly,” [4] the lack of any of Magidov’s internal emails regarding the Sunpoint valuation project, and [5] follow up on a reference to documents provided to Magidov from Sunpoint via Dropbox. (Jacob’s Reply Dec., Ex. A) Defendant Johnson responded to Magidov’s *Calcor* objection in the third, fourth and fifth reasons above explaining that the request for emails encompasses more than materials Defendant could obtain from Plaintiff Sunpoint.

Findings

Magidov has complied with the subpoena in part by producing, on August 7, 2025, the first batch of 439 pages. This was soon after July 25, 2025 when Defendant Johnson provided Magidov with a copy of the parties’ stipulated protective order. Magidov further complied by producing the second round of approximately 1500 pages of documents on October 23, 2025. However, that compliance did not happen until after much back and forth and Defendant Johnson’s filing of this motion to compel on October 7, 2025.

To date the Court does not see substantive responses from Magidov to Defendant Johnson’s concerns listed in the November 4, 2025 email: [1] substantial duplication and hundreds of pages are completely unreadable and illegible due to formatting issues,” [2] emails produced did not have any of their original attachments, [3] Defendant could not get all of the emails from Plaintiff Sunpoint “because it appears that key documents were sent by Michael Thchalikian and not Sunpoint directly,” [4] the lack of any of Magidov’s internal emails regarding the Sunpoint valuation project, and [5] follow up on a reference to documents provided to Magidov from Sunpoint via Dropbox. (Jacob’s Reply Dec., Ex. A)

Magidov’s objection regarding the burdens of discovery on a nonparty are valid, however Defendant Johnson’s counsel has adequately answered the objection and demonstrated why Defendant Johnson cannot get them from Plaintiff Sunpoint. Defendant Johnson explained that Plaintiff Sunpoint had refused production (Jacob’s August 13, 2025 8:58 am email, Jacob’s Reply Dec., Ex. 4), many of the emails requested were not in Plaintiff’s Sunpoint’s possession because they were Magidov’s internal emails or emails between Magidov and Michael Thchalikian (Sunpoint’s accountant), someone other than Plaintiff Sunpoint. Defendant Johnson demonstrated that the emails sought were not obtainable from a party.

Finally, Defendant Johnson has been reasonable in joining with Plaintiff Sunpoint to agree that the parties (not Magidov) will split the cost of production 50/50.

Defendant Johnson represented to the Court he was informed on January 16, 2026, two weeks ago, that Magidov has retained a third party e-discovery vendor to process and produce the documents, but that he had not received the remaining documents as of January 23, 2026. (Jacob's Reply Dec. ¶ 8)

The court finds that it is justifiable for Magidov to wish to redact sensitive financial information such as Social Security numbers from the remaining attachments to emails. Defendant Johnson makes no argument that he should have access to this information. He argues that the Stipulated Protective Order should be sufficient to assuage Magidov's concerns in this regard. The court agrees with Magidov that merely labeling files "for Attorney's Eyes Only" is not a reasonable security precaution given the highly sensitive and confidential nature of Social Security numbers.

The court believes Defendant Johnson and Plaintiff Sunpoint should have a better paper trail of efforts to meet and confer regarding retaining an e-vendor to handle Magidov's documents. After all they have agreed to split the costs of Magidov's production.

It has been three months since Magidov produced the 1500 pages of emails *sans* attachments. Magidov's silences, such as from October of 2025 to January 15, 2026 do not appear to be justified, and in particular Defendant Johnson's email from November 4, 2025 contains a handful of concerns in addition to the redaction issue which do not appear to have been resolved.

Orders

The court finds that Magidov has not substantially complied with the Subpoena issued in March of 2025. The court orders Magidov to pay Defendant Johnson sanctions in the amount of \$6,500, due and payable immediately.

Magidov is ordered to redact Social Security numbers from the attachments, and produce the redacted documents within 30 days of the entry of this order. The court orders the cost of redacting Social Security numbers from the attachments to be borne by the parties 50/50, in the same manner as they are sharing costs of the e-vendor.

13. 9:01 AM CASE NUMBER: C24-01590
CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO
***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION, AMENDED RESPONSES, AND RECORDS**
FILED BY: CLANCY, TIMOTHY F.
TENTATIVE RULING:

Plaintiff Timothy Clancy brought a Motion to Compel Deposition, Amended Responses and Records and Monetary Sanctions Against Defendant and Counsel, Lewis Brisbois.

Defendant Gary Johnson filed opposing papers in which he requested the court order sanctions against the Plaintiff and his counsel.

[1] Motion to Compel Continued Deposition of Defendant

The motion to compel the Deposition of the Defendant is denied for two reasons. First, the motion is untimely. Section 2025.480 of the Code of Civil Procedure provides in relevant part:

(a) If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.

(b) This motion shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040.

Second, the motion is denied for the independent reason that Defendant has already appeared for deposition on May 27, 2026 (94 days before this motion was filed) and has not refused to re-appear for a further deposition. Defense counsel emailed Plaintiff's attorneys on August 27, 2025 stating he "will produce Mr. Jurado for further deposition limited to documents that you claim were requested and not produced prior to his May 27, 2025 deposition. (Scott Dec. ¶ 6) This is a reasonable position. Nonetheless, Plaintiff filed the instant motion two days later, on August 29, 2025.

Before this motion was filed, the Defendant declared his agreement to appear at a further deposition. There is no showing from Plaintiff that Defendant has a history of failing to appear at a properly noticed deposition. No order from the court compelling compliance is necessary.

In addition, the motion to compel further deposition does not cite a single question that the Defendant refused to answer.

The motion to compel Defendant appear at a further deposition is denied. The court anticipates that the further deposition will occur with the cooperation of the parties as represented in the correspondence before the court.

[2] Plaintiff's Motion to Compel Amended Responses to the Defendant's Written Responses to the Request for Production of Documents

Plaintiff's Motion to Compel Amended Responses to the Defendant's Written Responses to the Request for Production of Documents is denied as untimely. Section 2025.480 of the Code of Civil Procedure provides in relevant part:

(a) If a deponent fails to answer any question or *to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice* or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.

(b) This motion shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer

declaration under Section 2016.040. (Emphasis added.)

Defendant produced documents and served a Third Amended Response to Plaintiff's Request for Production of Documents on May 5, 2026. (Mavrogianis Dec. Exs. A, B) Defendant produced additional documents on May 22, 2025. (Mavrogianis Dec. Ex. C) The Defendant's deposition was taken on May 27, 2025. This motion was filed on August 29, 2025 -- 94 days after the deposition. It is untimely.

The Plaintiff's explanations of why further responses are needed fall into three categories.

In the first category is the objection that Defendant failed to state that he has complied in full or in part, or explain why requested documents do not exist, per CCP §§ 2031.220 and 2031.230. This objection was raised to Requests for Production nos. 1-17, 21-29, 31-50, 52-63.

This is a valid objection on its face. Defendant's written objections failed to state that he has complied in full or in part, or explain why requested documents do not exist. However, Plaintiff knew or should have known that the Defendant's response was insufficient for this reason as soon as he received Defendant's Third Amended Response to Plaintiff's Request for Production of Documents on May 5, 2026. There is no reason to excuse the untimely motion to compel further responses.

The second category of Plaintiff's objections are those in Requests for Production nos. 18, 19 and 20 that describe how Plaintiff learned of the Notice of Violation after the May 27, 2025 deposition of the Defendant. But Defendant has already produced the Notice of Violation and there is no explanation of why further production is needed.

The third category of Plaintiff's objections concerns Requests for Production nos. 30 and 51. To these requests, Defendant answered that he has fully complied. Thus the objection that Defendant has not stated whether he has fully complied is overruled as nonsensical.

The court recites below its individual rulings on all 63 of the Plaintiff's Requests for Production as contained in the Plaintiff's Separate Statement, filed August 29, 2026.

REQUESTS FOR PRODUCTION NOS. 1-17, 21-29, 31-50, 52-63:

To Requests for Production nos. 1-17, 21-29, 31-50, 52-63, Defendant responded, "Responding Party objects to this request as vague, ambiguous, and overbroad. Responding Party objects to this request on the grounds that it seeks information not relevant to the subject litigation and not reasonably calculated to the lead to the discovery of admissible evidence."

Plaintiff's sole objection to the Defendant's response to these interrogatories was, "Respondent must either state he has complied in full or in party by producing all records in his possession, custody or control, or that if any of the requested documents do not exist , Respondent must explain why in a response. CCP §§ 2031.220, 2031.230."

Defendant served objections to the document requests on or about May 22, 2025. (Garcia Dec., ¶ 6, Mavrogianis Dec., ¶13) Plaintiff was able to make this objection when he received Respondent's Written Response to the Request for Production on May 22, 2025. Plaintiff's motion to compel on the basis of this objection was filed on August 29, 2025, more than 60 days after the objections were

received and is untimely per CCP § 2025.480.

REQUEST FOR PRODUCTION NO. 18:

ALL COMMUNICATIONS exchanged with the U.S. Army Corps of Engineering RELATING TO the SUBJECT PROPERTY from 2016 to present.

Motion to compel further responses to **Request for Production No. 18** is denied. Plaintiff contends that he learned after the Defendant's May 27, 2025 deposition that Defendant had not produced the Notice of Violation. As of the time Plaintiff filed this motion, Defendant has already produced the Notice of Violation. Plaintiff's description of Respondent's failure to produce the Notice of Alleged Violation at the time of the deposition does not constitute a reason why further production or explanation should be compelled.

REQUEST FOR PRODUCTION NO. 19:

ALL DOCUMENTS exchanged with the U.S. Army Corps of Engineering RELATING TO the SUBJECT PROPERTY, including the CREEK, from 2016 to present.

Motion to compel further responses to **Request for Production No. 19** is denied. Plaintiff contends that he learned after the Defendant's May 27, 2025 deposition that Defendant had not produced the Notice of Violation. As of the time Plaintiff filed this motion, Defendant has already produced the Notice of Violation. Plaintiff's description of Respondent's failure to produce the Notice of Alleged Violation at the time of the deposition does not constitute a reason why further production or explanation should be compelled.

REQUEST FOR PRODUCTION NO. 20:

ALL COMMUNICATIONS exchanged with ANY public agency RELATING TO the SUBJECT PROPERTY, including the CREEK, from 2016 to present.

Motion to compel further responses is denied for the reason stated above for Requests Nos. 18 and 19.

REQUEST FOR PRODUCTION NO. 30.

ALL COMMUNICATIONS exchanged with Caleb Boateng RELATING TO the SUBJECT PROPERTY, including the CREEK.

RESPONSE TO REQUEST FOR PRODUCTION NO. 30:

Responding Party has produced all responsive documents

Plaintiff's motion to compel further written response to **Request For Production No. 30 is denied.** Plaintiff's sole objection to the Defendant's response to these interrogatories is, "Respondent must either state he has complied in full or in part by producing all records in his possession, custody or control, or that if any of the requested documents no exist, Respondent must explain why in a response. CCP §§ 2031.220, 2031.230."

Here, Defendant clearly stated that *he has produced all responsive documents*. His response

indicated he complied in full. Plaintiff's objection is nonsensical in addition to being untimely.

REQUEST FOR PRODUCTION NO. 51.

YOUR insurance policy for the SUBJECT PROPERTY.

RESPONSE TO REQUEST FOR PRODUCTION NO. 51:

Responding Party has already produced the requested document.

Plaintiff's motion to compel further written response to **Request For Production No. 51 is denied.** Plaintiff's sole objection to the Defendant's response to these interrogatories is, "Respondent must either state he has complied in full or in part by producing all records in his possession, custody or control, or that if any of the requested documents no exist, Respondent must explain why in a response. CCP §§ 2031.220, 2031.230."

Here, Defendant clearly stated that *he has produced the requested document*. The Defendant's response is sufficient to affirm that he has complied in full. Plaintiff's objection is nonsensical in addition to being untimely.

[3] Sanctions

The court denies Plaintiff's motion for sanctions because the court denied Plaintiff's motions to compel further deposition of Defendant and further responses to the Defendant's Written Responses to the Request for Production of Documents.

The court denies Plaintiff's motion for monetary sanctions for "deposition misconduct" raised for the first time in Plaintiff's Reply to Motion to Compel Deposition, Amended Responses and Records; and Monetary Sanctions against Defendant and Counsel, Lewis Brisbois. ("Plaintiff's Reply," at page 6). There was no mention of a request for sanctions on this basis in Plaintiff's notice of motion and motion or any of moving papers filed on August 29, 2025. By raising this issue for the first time in the Reply Papers, Plaintiff has deprived the Defendant of notice and an opportunity to brief the court in advance of the hearing. The issue is not properly before the court.

The court grants Defendant's written request for sanctions in part because the Defendant acted in good faith in agreeing to produce Defendant for further deposition and Plaintiff did not act in good faith in bringing a motion to compel in the absence of any refusal to answer a question, a refusal to appear for deposition, or any history of failing to appear for a deposition. However, the court only awards part of the sanctions because the Defendant's Written Responses to the Request for Production of Documents were for the most part inadequate on their face. Most of Defendant's written objections failed to state that he has complied in full or in part, or explain why requested documents do not exist. The cookie cutter response, "Responding Party objects to this request as vague, ambiguous, and overbroad. Responding Party objects to this request as it seeks production of documents protected from disclosure by the attorney-client communication privilege and/or the attorney work product doctrine," without more, was insufficient and designed to be obstructive. Plaintiff's motion in this regard was denied for untimeliness, but his point concerning most of the objections was substantively valid.

Therefore the court awards sanctions against Plaintiff's counsel of \$3,000 due and payable in 10 calendar days.

[4] Orders

The court denies Plaintiff's motions to Compel Further Deposition of Defendant and Further Responses to the Defendant's Written Responses to the Request for Production of Documents.

The court does not rule on the issue of whether Defendant should produce the 1000 pages of documents it received under a FOIA request because the Plaintiff has not asserted that those documents are covered by a timely request for production at issue before the court.

Law & Motion
Add On

14. 9:00 AM CASE NUMBER: C25-01567

CASE NAME: ALEXIS DEAN VS. MONTE GARDENS ELEMENTARY SCHOOL (MOUNT DIABLO UNIFIED SCHOOL DISTRICT)

HEARING ON DEMURRER TO: COMPLAINT

FILED BY:

TENTATIVE RULING:

Defendant Mount Diablo School District's demurrer is **sustained without leave to amend as to Monte Gardens Elementary School and otherwise it is sustained with leave to amend as to the entire complaint.** Plaintiffs have 30 days from notice of entry of order to file and serve an amended complaint. Additional time has been given to amend the complaint to allow time for Plaintiff Dean to file an application to be appointed guardian *ad litem* before filing an amended complaint.

Plaintiffs Alexis Dean and Minor (a minor and Dean's child) filed this complaint against Monte Gardens Elementary School (Mount Diablo Unified School District). (The Court is using a pseudonym for the minor plaintiff in an abundance of caution, see Code of Civil Procedure § 372.5). Plaintiffs alleged two causes of action, one for general negligence and a second for intentional torts, relating to the school's treatment of Minor.

Defendant demurs to the complaint on several grounds, including that Monte Gardens is not a proper defendant, Plaintiffs have not alleged compliance with the Government Claims Act, Plaintiffs have not pled what duty was breached, Plaintiffs have not alleged facts to state a cause of action for negligence or intentional tort and Dean has not alleged direct injury to herself.

The allegations in the complaint and the briefing show that Dean is attempting to act as Minor's guardian *ad litem*. Dean has not been appointed guardian *ad litem* for Minor. Dean shall file

an application to be appointed guardian *ad litem* or be prepared to explain why no such appointment is necessary at the next case management conference.

Plaintiffs filed their opposition late. The Court exercises its discretion and will consider the opposition, however, the failure to timely file papers in the future may result in the Court disregarding those papers. (California Rules of Court, Rule 3.1300(d).)

Defendant argues that the individual school is not a proper defendant and instead that the School District is a proper defendant here. (See, Education Code § 35162.) Plaintiffs argue that Defendant knows it is being sued. The Court finds that Defendant is correct and Plaintiffs should name the School District as the defendant. The demurrer is sustained as to Monte Gardens Elementary School without leave to amend. However, Plaintiff may amend to allege a proper Defendant.

Defendant argues that Plaintiff has not alleged compliance with the Government Claims Act. Government Code “Section 905 requires the presentation of ‘all claims for money or damages against local public entities,’ subject to exceptions not relevant here. Claims for personal injury and property damage must be presented within six months after accrual; all other claims must be presented within a year. (§ 911.2.) ... ‘Thus, under these statutes, failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity.’ [Citation.]” (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 737-738.) Further, substantial compliance can sometimes be used in the government claim context, but it has limitations. (See, e.g. *Nguyen v. Los Angeles County Harbor/UCLA Medical Center* (1992) 8 Cal.App.4th 729, 732-733.)

Here, Plaintiffs allege that they filed a complaint against Defendant with the California Department of Education (CRD) on October 2, 2024, and received a right to sue letter on January 14, 2025. Plaintiffs argue that these allegations show substantial compliance with the Government Claims Act and provided Defendant with timely notice of Plaintiffs’ claims. Plaintiffs also argue that they subsequently filed a government claim, but provide no details.

Some cases have held that submitting a FEHA complaint to the Department of Fair Housing and Employment is sufficient to sue a public entity for FEHA claims because the legislative intent shows that FEHA actions are exempt from the general Government Claims Act requirements. (*Garcia v. L.A. Unified Sch. Dist.* (1985) 173 Cal.App.3d 701, 711.) Plaintiffs did not bring a FEHA claim here. Plaintiffs have provided no law that shows submitting their tort claims to the California Department of Education or Civil Rights Division would constitute substantial compliance with the Government Claims Act or that there is an exemption similar to the FEHA exemption. Further, the details of Plaintiffs’ submission to the CRD have not been provided nor alleged.

The Court finds that Plaintiffs have not alleged facts showing compliance or substantial compliance with the Government Claims Act. The demurrer is sustained with leave to amend.

Defendant argues that Plaintiffs have not alleged a statutory basis for their claims (this argument was not identical to the reasons listed in the demurrer, but it is reasonably included in demurrer reasons 3 and 4). Defendant correctly points out that under Government Code section

815(a), “[e]xcept as otherwise provided by statute . . . a public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” And that “direct tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on [] general tort provisions[.]” (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1183.)

Plaintiffs have not alleged a statute or statutes that provide liability for a public entity and therefore the demurrer is sustained with leave to amend on this ground.

Defendant argues that Plaintiffs have not alleged sufficient elements to show negligence, including breach of a duty, and that Plaintiffs have not specified what intentional tort is alleged here.

Plaintiffs argue that the school has a duty to prevent discrimination towards students in the school. Plaintiffs have not alleged a statutory basis for liability against the school district and those allegations are helpful in determining what duties the school district may owe in the situation. The Defendant’s demurrer as to the cause of action for negligence is therefore sustained with leave to amend.

Plaintiffs argue that they have alleged several intentional torts, including punishing Minor at school and treating her in a discriminatory nature. Plaintiffs’ complaint does not clearly identify the names of their intentional tort cause(s) of action. Further, Plaintiffs have not provided any legal citations that show these are actionable claims against a public entity. The Defendant’s demurrer as to the cause of action for intentional tort is sustained with leave to amend on this ground.

Defendant argues that Plaintiff Dean has not alleged any harm to herself and thus, does not have standing to bring her own claims. Plaintiffs argue that Dean has derivative harm to herself and standing to bring claims on behalf of Minor. Because Plaintiffs have not alleged a valid cause of action for Minor, the Court cannot determine if Dean has standing to bring a claim for her own injuries. Plaintiffs may amend their complaint to clarify what claims Dean is bringing in her individual capacity.

The demurrer is sustained as to the entire complaint with leave to amend. Plaintiffs must file an amended complaint within 30 calendar days of notice of entry of order.